

MUTUAL NON-DISCLOSURE AGREEMENT

Agreement Number: NDA-2023-047 **Effective Date:** December 1, 2023 **Expiration Date:** December 1, 2028

PARTIES

This Mutual Non-Disclosure Agreement ("Agreement") is entered into by and between:

PARTY A: TechServices Global Inc. 123 Innovation Drive, Suite 500
San Francisco, CA 94105 United States Contact:
legal@techservicesglobal.com ("TechServices")

PARTY B: Acme Corporation 456 Business Park Boulevard New
York, NY 10001 United States Contact: legal@acmecorp.com
("Acme")

Each individually a "Party" and collectively the "Parties."

RECITALS

WHEREAS, the Parties wish to explore a potential business relationship related to IT infrastructure services and cloud migration;

WHEREAS, in connection with such discussions, each Party may disclose to the other certain confidential and proprietary information;

WHEREAS, the Parties wish to establish terms governing the treatment of such confidential information;

NOW, THEREFORE, in consideration of the mutual covenants and agreements herein, the Parties agree as follows:

1. DEFINITIONS

1.1 Confidential Information

"Confidential Information" means any and all non-public information, in any form or medium, disclosed by one Party (the "Disclosing

Party") to the other Party (the "Receiving Party"), including but not limited to:

- (a) **Technical Information:** Software, source code, algorithms, designs, specifications, documentation, architectures, processes, techniques, inventions, and know-how;
- (b) **Business Information:** Business plans, strategies, financial information, pricing, customer lists, vendor information, marketing plans, and projections;
- (c) **Personnel Information:** Employee data, organizational charts, compensation information, and personnel records;
- (d) **Legal Information:** Contract terms, pending litigation, regulatory matters, and intellectual property portfolios;
- (e) **Operational Information:** Infrastructure details, security configurations, operational procedures, and system architectures.

1.2 Exclusions

Confidential Information does not include information that:

- (a) Is or becomes publicly available without breach of this Agreement;
- (b) Was rightfully in the Receiving Party's possession prior to disclosure;
- (c) Is rightfully obtained from a third party without restriction;
- (d) Is independently developed without use of Confidential Information;
- (e) Is required to be disclosed by law, regulation, or court order (subject to Section 4).

2. OBLIGATIONS OF CONFIDENTIALITY

2.1 Non-Disclosure

The Receiving Party shall:

- (a) Not disclose Confidential Information to any third party without prior written consent;
- (b) Protect Confidential Information using at least the same degree of care used to protect its own confidential information, but in no event less than reasonable care;
- (c) Limit access to Confidential Information to employees, contractors, and agents who have a need to know and are bound by confidentiality obligations at least as protective as this Agreement;
- (d) Not use Confidential Information for any purpose other than evaluating and pursuing the potential business relationship ("Permitted Purpose").

2.2 Security Measures

The Receiving Party shall implement appropriate security measures including:

- (a) Physical access controls for documents and storage media;
- (b) Encryption for electronic transmission and storage;
- (c) Access logging and monitoring;
- (d) Secure destruction of Confidential Information when no longer needed.

2.3 Notification

The Receiving Party shall notify the Disclosing Party within **24 hours** of discovering any unauthorized access, use, or disclosure of Confidential Information.

3. PERMITTED DISCLOSURES

3.1 Authorized Representatives

The Receiving Party may disclose Confidential Information to:

- (a) Directors, officers, and employees with a need to know;
- (b) Legal counsel, accountants, and financial advisors under professional duty of confidentiality;
- (c) Contractors and consultants who have signed confidentiality agreements with terms at least as protective as this Agreement.

3.2 Affiliates

Disclosure to Affiliates is permitted provided:

- (a) The Affiliate has signed a confidentiality agreement with comparable terms;
- (b) The Disclosing Party is notified in writing within **5 business days**;
- (c) The disclosing Party remains responsible for the Affiliate's compliance.

4. COMPELLED DISCLOSURE

4.1 Legal Requirements

If the Receiving Party is required by law, regulation, or legal process to disclose Confidential Information, the Receiving Party shall:

- (a) Provide prompt written notice to the Disclosing Party (to the extent legally permitted);
- (b) Cooperate with the Disclosing Party's efforts to seek protective treatment;
- (c) Disclose only the minimum amount of information required;
- (d) Use reasonable efforts to obtain confidential treatment for disclosed information.

4.2 Notice Period

The Receiving Party shall provide at least **10 business days** advance notice before any compelled disclosure (or such shorter period as may be required by law).

5. INTELLECTUAL PROPERTY

5.1 No Transfer

Nothing in this Agreement grants any rights in intellectual property. All Confidential Information remains the property of the Disclosing Party.

5.2 No License

No license, express or implied, is granted to the Receiving Party under any patents, copyrights, trademarks, or trade secrets of the Disclosing Party.

5.3 Reservation of Rights

The Disclosing Party reserves all rights not expressly granted herein.

6. TERM AND TERMINATION

6.1 Term

This Agreement shall commence on the Effective Date and continue for a period of **five (5) years** unless earlier terminated.

6.2 Termination

Either Party may terminate this Agreement upon **30 days** written notice to the other Party.

6.3 Survival

The obligations of confidentiality shall survive termination or expiration of this Agreement for a period of **five (5) years** following

disclosure of any Confidential Information, except for trade secrets which shall be protected indefinitely.

7. RETURN OR DESTRUCTION

7.1 Upon Request

Upon written request from the Disclosing Party, the Receiving Party shall:

- (a) Return all tangible Confidential Information and copies thereof;
OR
- (b) Destroy all Confidential Information and certify such destruction in writing.

7.2 Retention Exception

The Receiving Party may retain:

- (a) Confidential Information required to be retained by law or regulation;
- (b) Archival copies maintained in accordance with standard backup procedures;
- (c) Copies retained by legal counsel for compliance purposes.

Such retained information remains subject to the confidentiality obligations of this Agreement.

7.3 Certification

The Receiving Party shall provide written certification of return or destruction within **15 business days** of request.

8. REPRESENTATIONS AND WARRANTIES

8.1 Authority

Each Party represents and warrants that:

- (a) It has the authority to enter into this Agreement;
- (b) It has the right to disclose its Confidential Information;
- (c) Disclosure will not violate any third-party rights or other agreements.

8.2 No Warranty of Accuracy

THE DISCLOSING PARTY MAKES NO WARRANTY AS TO THE ACCURACY OR COMPLETENESS OF ANY CONFIDENTIAL INFORMATION. ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS."

9. REMEDIES

9.1 Injunctive Relief

The Parties acknowledge that breach of this Agreement may cause irreparable harm for which monetary damages would be inadequate. Accordingly, the Disclosing Party shall be entitled to seek injunctive or other equitable relief without posting bond.

9.2 Cumulative Remedies

All remedies are cumulative and not exclusive. The exercise of one remedy does not preclude the exercise of others.

10. INDEMNIFICATION

10.1 Indemnification Obligation

The Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party from and against any claims, damages, losses, and expenses (including reasonable attorneys' fees) arising from:

- (a) Breach of this Agreement by the Receiving Party;
- (b) Unauthorized disclosure or use of Confidential Information;
- (c) Violation of applicable laws in connection with Confidential Information.

10.2 Indemnification Cap

Total indemnification liability shall not exceed **\$5,000,000** except for claims arising from gross negligence or willful misconduct.

11. LIMITATION OF LIABILITY

11.1 Exclusion of Damages

EXCEPT FOR BREACH OF CONFIDENTIALITY OBLIGATIONS, NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES.

11.2 Liability Cap

TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED **\$2,000,000**, EXCEPT FOR BREACH OF SECTIONS 2 OR 3 (CONFIDENTIALITY OBLIGATIONS).

12. GENERAL PROVISIONS

12.1 Governing Law

This Agreement shall be governed by the laws of the **State of Delaware**, without regard to conflicts of law principles.

12.2 Jurisdiction

Any dispute arising under this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware.

12.3 Entire Agreement

This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof and supersedes all prior agreements and understandings.

12.4 Amendment

This Agreement may only be amended by written instrument signed by both Parties.

12.5 Waiver

Failure to enforce any provision shall not constitute a waiver of future enforcement.

12.6 Severability

If any provision is held invalid, the remaining provisions shall continue in full force and effect.

12.7 Assignment

Neither Party may assign this Agreement without prior written consent, except to an Affiliate or in connection with a merger or acquisition.

12.8 Notices

All notices shall be in writing and delivered to the addresses set forth above, or to such other address as a Party may designate in writing.

12.9 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original.

13. SPECIAL PROVISIONS

13.1 Data Protection

Each Party shall comply with applicable data protection laws (including GDPR and CCPA) when processing personal data disclosed as Confidential Information.

13.2 Export Control

Neither Party shall export or re-export any Confidential Information in violation of applicable export control laws.

13.3 Government Contracts

If any Confidential Information relates to government contracts, additional security requirements may apply.

13.4 Audit Rights

The Disclosing Party may audit the Receiving Party's compliance with this Agreement upon **30 days** written notice, no more than once per year.

KEY OBLIGATIONS SUMMARY

Obligation	Party	Deadline
Notify of unauthorized access	Both	Within 24 hours
Notify of affiliate disclosure	Receiving	Within 5 business days
Notice before compelled disclosure	Receiving	10 business days minimum
Return/destroy upon request	Receiving	Within 15 business days
Termination notice	Either	30 days
Survival of obligations	Both	5 years post-disclosure

KEY DATES

Event	Date
Effective Date	December 1, 2023
Agreement Expiration	December 1, 2028
Confidentiality Survival	5 years from each disclosure
Trade Secret Protection	Indefinite

SIGNATURES

TechServices Global Inc.

Signature: _____ Name: Sarah Williams Title: General Counsel
Date: November 28, 2023

Acme Corporation

Signature: _____ Name: David Park Title: Deputy General Counsel
Date: November 29, 2023

End of Mutual Non-Disclosure Agreement